



Notification Waiver Determination

Hostplus – CH Investment Holding Trust

Acquisition	Host-Plus Pty. Limited as trustee for the Hostplus Pooled Superannuation Trust (Hostplus) applied for a notification waiver in respect of its proposed acquisition of 50% of CH Investment Holding Trust (CH Holding Trust), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 May 2026

Parties to the Acquisition	The acquirer, Hostplus, is the trustee for each of the Hostplus Pooled Superannuation Trust and the Hostplus Superannuation Fund. The Hostplus Pooled Superannuation Trust is the unit trust vehicle that the Hostplus Superannuation Fund utilises to access investments for its members. The Hostplus Superannuation Fund has 1.87 million members (as at 30 June 2025), with current funds under management of \$134 billion (as at 30 June 2025). Hostplus invests across a diversified portfolio of asset classes, including equities, fixed income, infrastructure, property, private equity and alternative investments, for the benefit of its members. Hostplus has passive minority investments in funds that have exposure to commercial office space in the Sydney CBD. The target, CH Holding Trust, indirectly holds commercial property assets in the Sydney CBD. CH Holding Trust is managed by Charter Hall which is an Australian property investment and funds management group, that acts as a fiduciary for wholesale, institutional, and retail investors. Through the Acquisition, Hostplus will gain a 50% indirect interest in the commercial property assets indirectly owned by CH Holding Trust in the Sydney CBD.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the increment to Hostplus' interests in commercial office property in Sydney CBD will be small

	b. there are alternative commercial office offerings in the Sydney CBD. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**